

Data Processing Agreement Template 2025

6. Confidentiality

Each party shall keep Confidential Information secret and use it only for purposes of this Agreement. Confidential Information may be disclosed to employees, advisers and contractors on a need-to-know basis subject to equivalent confidentiality obligations.

Confidentiality obligations do not apply to information that: (a) is public through no breach; (b) was lawfully known before disclosure; (c) is independently developed; or (d) is required to be disclosed by law, regulation or court order (with notice where permitted).

On termination, each party shall return or destroy Confidential Information within thirty (30) days, except one archival copy may be retained for compliance purposes subject to ongoing confidentiality.

7. Data Protection

To the extent the Company processes personal data on behalf of Customer Template, the parties shall execute the Data Processing Agreement at Schedule 3, which incorporates Standard Contractual Clauses where required for international transfers.

The Company shall implement appropriate technical and organisational measures as described in its security whitepaper and notify Customer Template without undue delay upon becoming aware of a personal data breach affecting Customer Data.